



CHAPTER 51

An Act to make new provision with respect to public records and the Public Record Office, and for connected purposes. [23rd July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The direction of the Public Record Office shall be transferred from the Master of the Rolls to the Lord Chancellor, and the Lord Chancellor shall be generally responsible for the execution of this Act and shall supervise the care and preservation of public records. General responsibility of the Lord Chancellor for public records.

(2) There shall be an Advisory Council on Public Records to advise the Lord Chancellor on matters concerning public records in general and, in particular, on those aspects of the work of the Public Record Office which affect members of the public who make use of the facilities provided by the Public Record Office.

The Master of the Rolls shall be chairman of the said Council and the remaining members of the Council shall be appointed by the Lord Chancellor on such terms as he may specify.

(3) The Lord Chancellor shall in every year lay before both Houses of Parliament a report on the work of the Public Record Office, which shall include any report made to him by the Advisory Council on Public Records.

2.—(1) The Lord Chancellor may appoint a Keeper of Public Records to take charge under his direction of the Public Record Office and of the records therein and may, with the concurrence of the Treasury as to numbers and conditions of service, appoint such other persons to serve in the Public Record Office as he may think fit. The Public Record Office.

(2) The Keeper of Public Records and other persons appointed under this Act shall receive such salaries and remuneration as the Treasury may from time to time direct.

(3) It shall be the duty of the Keeper of Public Records to take all practicable steps for the preservation of records under his charge.

(4) The Keeper of Public Records shall have power to do all such things as appear to him necessary or expedient for maintaining the utility of the Public Record Office and may in particular—

- (a) compile and make available indexes and guides to, and calendars and texts of, the records in the Public Record Office ;
- (b) prepare publications concerning the activities of and facilities provided by the Public Record Office ;
- (c) regulate the conditions under which members of the public may inspect public and other records or use the other facilities of the Public Record Office ;
- (d) provide for the making and authentication of copies of and extracts from records required as evidence in legal proceedings or for other purposes ;
- (e) accept responsibility for the safe keeping of records other than public records ;
- (f) make arrangements for the separate housing of films and other records which have to be kept under special conditions ;
- (g) lend records, in a case where the Lord Chancellor gives his approval, for display at commemorative exhibitions or for other special purposes ;
- (h) acquire records and accept gifts and loans.

(5) The Lord Chancellor may by regulations made with the concurrence of the Treasury and contained in a statutory instrument prescribe the fees which may be charged for the inspection of records under the charge of the Keeper of Public Records, for authenticated copies or extracts from such records and for other services afforded by officers of the Public Record Office and authorise the remission of the fees in prescribed cases.

(6) Fees received under the last foregoing subsection shall be paid into the Exchequer.

Selection and
preservation
of public
records.

3.—(1) It shall be the duty of every person responsible for public records of any description which are not in the Public Record Office or a place of deposit appointed by the Lord Chancellor under this Act to make arrangements for the selection of those records which ought to be permanently preserved and for their safe-keeping.

(2) Every person shall perform his duties under this section under the guidance of the Keeper of Public Records and the said

Keeper shall be responsible for co-ordinating and supervising all action taken under this section.

(3) All public records created before the year sixteen hundred and sixty shall be included among those selected for permanent preservation.

(4) Public records selected for permanent preservation under this section shall be transferred not later than thirty years after their creation either to the Public Record Office or to such other place of deposit appointed by the Lord Chancellor under this Act as the Lord Chancellor may direct:

Provided that any records may be retained after the said period if, in the opinion of the person who is responsible for them, they are required for administrative purposes or ought to be retained for any other special reason and, where that person is not the Lord Chancellor, the Lord Chancellor has been informed of the facts and given his approval.

(5) The Lord Chancellor may, if it appears to him in the interests of the proper administration of the Public Record Office, direct that the transfer of any class of records under this section shall be suspended until arrangements for their reception have been completed.

(6) Public records which, following the arrangements made in pursuance of this section, have been rejected as not required for permanent preservation shall be destroyed or, subject, in the case of records for which some person other than the Lord Chancellor is responsible, to the approval of the Lord Chancellor, disposed of in any other way.

(7) Any question as to the person whose duty it is to make arrangements under this section with respect to any class of public records shall be referred to the Lord Chancellor for his decision.

(8) The provisions of this section shall not make it unlawful for the person responsible for any public record to transmit it to the Keeper of the Records of Scotland or to the Public Record Office of Northern Ireland.

4.—(1) If it appears to the Lord Chancellor that a place outside the Public Record Office affords suitable facilities for the safe-keeping and preservation of records and their inspection by the public he may, with the agreement of the authority who will be responsible for records deposited in that place, appoint it as a place of deposit as respects any class of public records selected for permanent preservation under this Act. Place of deposit of public records.

(2) In choosing a place of deposit under this section for public records of—

(a) courts of quarter sessions or magistrates' courts, or

(b) courts of coroners of counties or boroughs,

the Lord Chancellor shall have regard to any arrangements made by the person for the time being responsible for the records

with respect to the place where those records are to be kept and, where he does not follow any such arrangements, shall, so far as practicable, proceed on the principle that the records of any such court ought to be kept in the area of the administrative county or county borough comprising the area for which the court acts or where it sits, except in a case where the authorities or persons appearing to the Lord Chancellor to be mainly concerned consent to the choice of a place of deposit elsewhere.

(3) The Lord Chancellor may at any time direct that public records shall be transferred from the Public Record Office to a place of deposit appointed under this section or from such a place of deposit to the Public Record Office or another place of deposit.

(4) Before appointing a place of deposit under this section as respects public records of a class for which the Lord Chancellor is not himself responsible, he shall consult with the Minister or other person, if any, who appears to him to be primarily concerned and, where the records are records of a court of quarter sessions the records of which are, apart from the provisions of this Act, subject to the directions of a *custos rotulorum*, the Lord Chancellor shall consult him.

(5) Public records in the Public Record Office shall be in the custody of the Keeper of Public Records and public records in a place of deposit appointed under this Act shall be in the custody of such officer as the Lord Chancellor may appoint.

(6) Public records in the Public Record Office or other place of deposit appointed by the Lord Chancellor under this Act shall be temporarily returned at the request of the person by whom or department or office from which they were transferred.

Access to
public records.

5.—(1) Public records in the Public Record Office, other than those to which members of the public had access before their transfer to the Public Record Office, shall not be available for public inspection until they have been in existence for fifty years or such other period, either longer or shorter, as the Lord Chancellor may, with the approval, or at the request, of the Minister or other person, if any, who appears to him to be primarily concerned, for the time being prescribe as respects any particular class of public records.

(2) Without prejudice to the generality of the foregoing subsection, if it appears to the person responsible for any public records which have been selected by him under section three of this Act for permanent preservation that they contain information which was obtained from members of the public under such conditions that the opening of those records to the public after the period determined under the foregoing subsection would or might constitute a breach of good faith on the part of the Government or on the part of the persons who obtained the information, he

shall inform the Lord Chancellor accordingly and those records shall not be available in the Public Record Office for public inspection even after the expiration of the said period except in such circumstances and subject to such conditions, if any, as the Lord Chancellor and that person may approve, or, if the Lord Chancellor and that person think fit, after the expiration of such further period as they may approve.

(3) Subject to the foregoing provisions of this section, subject to the enactments set out in the Second Schedule to this Act (which prohibit the disclosure of certain information obtained from the public except for certain limited purposes) and subject to any other Act or instrument whether passed or made before or after this Act which contains a similar prohibition, it shall be the duty of the Keeper of Public Records to arrange that reasonable facilities are available to the public for inspecting and obtaining copies of public records in the Public Record Office.

(4) Subsection (1) of this section shall not make it unlawful for the Keeper of Public Records to permit a person to inspect any records if he has obtained special authority in that behalf given by an officer of a government department or other body, being an officer accepted by the Lord Chancellor as qualified to give such an authority.

(5) The Lord Chancellor shall as respects all public records in places of deposit appointed by him under this Act outside the Public Record Office require arrangements to be made for their inspection by the public comparable to those made for public records in the Public Record Office, and subject to restrictions corresponding with those contained in the foregoing provisions of this section.

6. If as respects any public records in the Public Record Office or any place of deposit appointed under this Act it appears to the Keeper of Public Records that they are duplicated by other public records which have been selected for permanent preservation or that there is some other special reason why they should not be permanently preserved, he may, with the approval of the Lord Chancellor and of the Minister or other person, if any, who appears to the Lord Chancellor to be primarily concerned with public records of the class in question, authorise the destruction of those records or, with that approval, their disposal in any other way.

Destruction
of public
records in
Public Record
Office or
other place
of deposit.

7.—(1) Subject to the provisions of this section, the Master of the Rolls shall continue to be responsible for, and to have custody of, the records of the Chancery of England, including those created after the commencement of this Act, and shall have power to determine where the said records or any of them are for the time being to be deposited.

Records
for which
Master of
the Rolls
remains
responsible.

(2) Section three and subsection (6) of section four of this Act shall not apply to any of the said records but if and so long as any of them are deposited in the Public Record Office those records shall be in the custody of the Keeper of Public Records and subject to the directions of the Lord Chancellor as in the case of any other records in the Public Record Office.

(3) Subject to the foregoing provisions of this section, the Master of the Rolls shall not have charge and superintendence over, or custody of, any public records and any public records which at the commencement of this Act were in the custody of the Master of the Rolls (other than records of the Chancery of England) shall thereafter be in the custody of the Keeper of Public Records or such other officer as the Lord Chancellor may from time to time appoint.

Court records. 8.—(1) The Lord Chancellor shall be responsible for the public records of every court of record or magistrates' court which are not in the Public Record Office or a place of deposit appointed by him under this Act and shall have power to determine in the case of any such records the officer in whose custody they are for the time being to be:

Provided that in the application of this subsection to public records of the Chancery Court of the County Palatine of Lancaster references to the Chancellor of the Duchy of Lancaster shall be substituted for references to the Lord Chancellor.

(2) The power of the President of the Probate Division of the High Court under section one hundred and seventy of the Supreme Court of Judicature (Consolidation) Act, 1925, to direct where the wills and other documents mentioned in that section are to be deposited and preserved (exercisable with the consent of the Lord Chancellor) shall be transferred to the Lord Chancellor.

(3) Where it appears to the President of the Probate Division that the copies of calendars of grants prepared under section one hundred and fifty-six of the Supreme Court of Judicature (Consolidation) Act, 1925, which are kept in a particular district probate registry, or such of those calendars as were issued before a particular date, are not being used by members of the public to any appreciable extent and that, having regard to the facilities for consulting copies of the calendars kept elsewhere, it is reasonable to withdraw the public right of inspection of those copies of calendars in that particular probate registry, he may direct that subsection (3) of the said section one hundred and fifty-six shall cease to apply to those copies and, if he thinks fit, that they shall be transferred to and kept for public inspection in such other place as he may direct.

In this subsection the reference to a district probate registry includes a reference to the office of the commissary clerk of Edinburgh and the probate registry in Belfast.

(4) Where any private documents have remained in the custody of a court in England or Wales for more than fifty years without being claimed, the Keeper of Public Records may, with the approval of the Master of the Rolls, require the documents to be transferred to the Public Record Office and thereupon the documents shall become public records for the purposes of this Act.

(5) Section three of this Act shall not apply to such of the records of ecclesiastical courts described in paragraph (n) of subparagraph (1) of paragraph 4 of the First Schedule to this Act as are not held in any office of the Supreme Court or in the Public Record Office, but, if the Lord Chancellor after consulting the President of the Probate Division so directs as respects any of those records, those records shall be transferred to such place of deposit as may be appointed by the Lord Chancellor and shall thereafter be in the custody of such officer as may be so appointed.

(6) The public records which at the commencement of this Act are in the custody of the University of Oxford and which are included in the index a copy of which was transmitted to the principal probate registrar under section two of the Oxford University Act, 1860, shall not be required to be transferred under the last foregoing subsection but the Lord Chancellor shall make arrangements with the University of Oxford as to the conditions under which those records may be inspected by the public.

9.—(1) The legal validity of any record shall not be affected by its removal under the provisions of this Act, or of the Public Record Office Acts, 1838 to 1898, or by any provisions in those Acts with respect to its legal custody.

Legal validity of public records and authenticated copies.

(2) A copy of or extract from a public record in the Public Record Office purporting to be examined and certified as true and authentic by the proper officer and to be sealed or stamped with the seal of the Public Record Office shall be admissible as evidence in any proceedings without any further or other proof thereof if the original record would have been admissible as evidence in those proceedings.

In this subsection the reference to the proper officer is a reference to the Keeper of Public Records or any other officer of the Public Record Office authorised in that behalf by the Keeper of Public Records, and, in the case of copies and extracts made before the commencement of this Act, the deputy keeper of the records or any assistant record keeper appointed under the Public Record Office Act, 1838.

Interpretation. **10.**—(1) In this Act “public records” has the meaning assigned to it by the First Schedule to this Act and “records” includes not only written records but records conveying information by any other means whatsoever.

(2) Where records created at different dates are for administrative purposes kept together in one file or other assembly all the records in that file or other assembly shall be treated for the purposes of this Act as having been created when the latest of those records was created.

Public Record Office Acts to cease to have effect.

11. The Public Record Office Acts, 1838 to 1898, shall cease to have effect and the enactments mentioned in the Third Schedule to this Act shall have effect subject to the amendments there specified, being amendments consequential on the provisions of this section.

Northern Ireland.

12.—(1) It shall be lawful for any government department or other body or person having the custody of any public records relating exclusively or mainly to Northern Ireland to transmit those records to the Public Record Office of Northern Ireland.

(2) No limitation or restriction imposed by virtue of any enactment on the powers of the Parliament of Northern Ireland shall preclude that Parliament from passing legislation, in relation to courts or tribunals whose jurisdiction extends only to Northern Ireland, for purposes similar to the purposes of subsection (4) of section eight of this Act.

Short title, repeals and commencement.

13.—(1) This Act may be cited as the Public Records Act, 1958.

(2) The enactments specified in the Fourth Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(3) This Act shall come into force on the first day of January, nineteen hundred and fifty-nine.

SCHEDULES

FIRST SCHEDULE

Section 10.

DEFINITION OF PUBLIC RECORDS

1. The provisions of this Schedule shall have effect for determining what are public records for the purposes of this Act.

Departmental records

2.—(1) Subject to the provisions of this paragraph, administrative and departmental records belonging to Her Majesty, whether in the United Kingdom or elsewhere, in right of Her Majesty's Government in the United Kingdom and, in particular,—

- (a) records of, or held in, any department of Her Majesty's Government in the United Kingdom, or
- (b) records of any office, commission or other body or establishment whatsoever under Her Majesty's Government in the United Kingdom,

shall be public records.

(2) Sub-paragraph (1) of this paragraph shall not apply—

- (a) to records of any government department or body which is wholly or mainly concerned with Scottish affairs, or which carries on its activities wholly or mainly in Scotland, or
- (b) to registers, or certified copies of entries in registers, being registers or certified copies kept or deposited in the General Register Office under or in pursuance of any enactment, whether past or future, which provides for the registration of births, deaths, marriages or adoptions, or
- (c) except so far as provided by paragraph 4 of this Schedule, to records of the Duchy of Lancaster, or
- (d) to records of the office of the Public Trustee relating to individual trusts.

3.—(1) Without prejudice to the generality of sub-paragraph (1) of the last foregoing paragraph, the administrative and departmental records of bodies and establishments set out in the Table at the end of this paragraph shall be public records, whether or not they are records belonging to Her Majesty.

(2) The provisions of this paragraph shall not be taken as applying to records in any museum or gallery mentioned in the said Table which form part of its permanent collections (that is to say records which the museum or gallery has acquired otherwise than by transfer from or arrangements with a government department).

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—cont.

TABLE
PART I
BODIES AND ESTABLISHMENTS UNDER
GOVERNMENT DEPARTMENTS

<i>Responsible Government Department</i>	
<i>Ministry of Agriculture, Fisheries and Food.</i>	Agricultural Wages Board. Agricultural Wages Committees. Organisation known as the "National Farm Survey". Official seed testing station for England and Wales.
<i>Air Ministry ...</i>	Meteorological Office.
<i>Ministry of Education</i>	Victoria and Albert Museum. Science Museum.
<i>Ministry of Health ...</i>	National Health Service Authorities other than local health authorities. National health service hospitals except— records of endowments passing to Boards of Governors under section seven of the National Health Service Act, 1946. records relating to funds held by Hospital Boards and Committees under sections fifty-nine and sixty of the said Act, and records of private patients admitted under section five of the said Act.
<i>Home Office ...</i>	Welsh Board of Health. Office of Commissioner of Police of the Metropolis. Office of Receiver for the Metropolitan Police District.
<i>Ministry of Labour and National Service.</i>	National Dock Labour Board. National Institute of Houseworkers Limited. Wages Boards and Wages Councils.
<i>Ministry of Pensions and National Insurance.</i>	National Insurance Advisory Committee. Industrial Injuries Advisory Council. National Insurance and Industrial Injuries Joint Authorities. Workmen's Compensation Supplementation Board. Pneumoconiosis and Byssinosis Benefit Board.
<i>Ministry of Transport and Civil Aviation.</i>	Air Transport Advisory Council. Air Registration Board.

PART II

OTHER ESTABLISHMENTS AND ORGANISATIONS

Anglo-Egyptian Resettlement Board.
British Museum (including the Natural History Museum).
Catering Wages Commission.
Coal Industry Social Welfare Organisation.

Crown Agents for Overseas Governments and Administrations except when acting for governments or authorities outside Her Majesty's dominions.

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—cont.

Development Commission.
Imperial War Museum.
Irish Sailors' and Soldiers' Land Trust.
London Museum.
Monopolies Commission.
National Coal Board.
National Gallery.
National Maritime Museum.
National Parks Commission.
National Portrait Gallery.
National Savings Committee.
Office of Registrar of Restrictive Trading Agreements.
Remploy Limited.
Royal Greenwich Observatory.
Tate Gallery.
Trustee Savings Banks Inspection Committee.
United Kingdom Atomic Energy Authority.
University Grants Committee.
Wallace Collection.
War Works Commission.

Any body established for the purpose of determining the boundaries of constituencies of the Parliament of the United Kingdom, or of local authorities in England or Wales.

Records of courts and tribunals

4.—(1) Subject to the provisions of this paragraph, records of the following descriptions shall be public records for the purposes of this Act:—

- (a) records of, or held in any department of, the Supreme Court (including any court held under a commission of assize);
- (b) records of county courts and of any other superior or inferior court of record established since the passing of the County Courts Act, 1846;
- (c) records of the Chancery Court of the County Palatine of Lancaster and of the Chancery Court of the County Palatine of Durham;
- (d) records of courts of quarter sessions;
- (e) records of magistrates' courts;
- (f) records of coroners' courts;
- (g) records of courts-martial held whether within or outside the United Kingdom by any of Her Majesty's forces raised in the United Kingdom;
- (h) records of naval courts held whether within or outside the United Kingdom under the enactments relating to merchant shipping;
- (i) records of any court exercising jurisdiction held by Her Majesty within a country outside Her dominions;
- (j) records of any tribunal (by whatever name called)—
 - (i) which has jurisdiction connected with any functions of a department of Her Majesty's Government in the United Kingdom; or

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—cont.

- (ii) which has jurisdiction in proceedings to which such a Government department is a party or to hear appeals from decisions of such a Government department;
- (k) records of the Lands Tribunal or of any Rent Tribunal or Local Valuation Court;
- (l) records of the Industrial Court, of the Industrial Disputes Tribunal, and of the National Arbitration Tribunal (which was replaced by the Industrial Disputes Tribunal);
- (m) records of umpires and deputy-umpires appointed under the National Service Act, 1948, or the Reinstatement in Civil Employment Act, 1944;
- (n) records of ecclesiastical courts when exercising the testamentary and matrimonial jurisdiction removed from them by the Court of Probate Act, 1857, and the Matrimonial Causes Act, 1857, respectively;
- (o) records of such other courts or tribunals (by whatever name called) as the Lord Chancellor may by order contained in a statutory instrument specify.
- (2) This paragraph shall not apply to any court or tribunal whose jurisdiction extends only to Scotland or Northern Ireland.
- (3) In this paragraph "records" includes records of any proceedings in the court or tribunal in question and includes rolls, writs, books, decrees, bills, warrants and accounts of, or in the custody of, the court or tribunal in question.

Records of the Chancery of England

5. The records of the Chancery of England shall be public records for the purposes of this Act.

Records in Public Record Office

6. Without prejudice to the foregoing provisions of this Schedule, public records for the purposes of this Act shall include—

- (a) all records within the meaning of the Public Record Office Act, 1838, or to which that Act was applied, which at the commencement of this Act are in the custody of the Master of the Rolls in pursuance of that Act, and
- (b) all records (within the meaning of the said Act or to which that Act was applied) which at the commencement of this Act are in the Public Record Office and, in pursuance of the said Act, under the charge and superintendence of the Master of the Rolls, and
- (c) all records forming part of the same series as any series of documents falling under sub-paragraph (a) or sub-paragraph (b) of this paragraph.

Power to add further categories of records and to determine cases of doubt

7.—(1) Without prejudice to the Lord Chancellor's power of making orders under paragraph 4 of this Schedule, Her Majesty may by Order in Council direct that any description of records not falling within the foregoing provisions of this Schedule shall be treated as

public records for the purposes of this Act but no recommendation shall be made to Her Majesty in Council to make an Order under this sub-paragraph unless a draft of the Order has been laid before Parliament and approved by resolution of each House of Parliament.

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—cont.

(2) A question whether any records or description of records are public records for the purposes of this Act shall be referred to and determined by the Lord Chancellor and the Lord Chancellor shall include his decisions on such questions in his annual report to Parliament and shall from time to time compile and publish lists of the departments, bodies, establishments, courts and tribunals comprised in paragraphs 2, 3 and 4 of this Schedule and lists describing more particularly the categories of records which are, or are not, public records as defined in this Schedule.

Interpretation

8. It is hereby declared that any description of government department, court, tribunal or other body or establishment in this Schedule by reference to which a class of public records is framed extends to a government department, court, tribunal or other body or establishment, as the case may be, which has ceased to exist, whether before or after the passing of this Act.

SECOND SCHEDULE

Section 5.

ENACTMENTS PROHIBITING DISCLOSURE OF INFORMATION OBTAINED FROM THE PUBLIC

The Land Registration Act, 1925 (15 & 16 Geo. 5. c. 21)	...	...	...	Section 112
The Import Duties Act, 1932 (22 & 23 Geo. 5. c. 58)	...	...	...	Section 10
The Ministry of Supply Act, 1939 (2 & 3 Geo. 6. c. 38)	...	...	...	Section 17
The War Damage Act, 1943 (6 & 7 Geo. 6. c. 21)	...	...	...	Section 118
The Coal Industry Nationalisation Act, 1946 (9 & 10 Geo. 6. c. 59)	...	...	...	Section 56
The Statistics of Trade Act, 1947 (10 & 11 Geo. 6. c. 39)	...	...	...	Section 9
The Cotton (Centralised Buying) Act, 1947 (10 & 11 Geo. 6. c. 26)	...	...	...	Section 23
The Industrial Organisation and Development Act, 1947 (10 & 11 Geo. 6. c. 40)	...	...	...	Section 5
The Agriculture Act, 1947 (10 & 11 Geo. 6. c. 48)	...	...	...	Section 80
The Cotton Spinning (Re-Equipment Subsidy) Act, 1948 (11 & 12 Geo. 6. c. 31)	...	...	...	Section 4
The Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948 (11 & 12 Geo. 6. c. 66)	...	...	...	Section 17

2ND SCH. —cont.	The Legal Aid and Advice Act, 1949	Section 14
	(12 & 13 Geo. 6. c. 51)	
	The Legal Aid and Solicitors (Scotland) Act, 1949 ...	Section 15
	(12 & 13 Geo. 6. c. 63)	
	The Restrictive Trade Practices Act, 1956	Section 33
	(4 & 5 Eliz. 2. c. 68)	
	The Cinematograph Films Act, 1957	Section 5
	(5 & 6 Eliz. 2. c. 21)	
	The Defence (General) Regulations, 1939	Regulation 84

Section 11.

THIRD SCHEDULE

CONSEQUENTIAL AMENDMENTS

The Forgery Act, 1913 (3 & 4 Geo. 5. c. 27)

In paragraph (d) of subsection (2) of section three the reference to a certified copy of a record purporting to be signed by an assistant keeper of the Public Records in England shall include a reference to a certified copy of a record purporting to be signed by the Keeper of Public Records or any officer of the Public Record Office authorised in that behalf by the Keeper of Public Records.

The Public Records (Scotland) Act, 1937 (1 Edw. 8 & 1 Geo. 6. c. 43)

In subsection (1) of section five the proviso (which requires the consent of the Master of the Rolls to the transmission of certain public records to the Keeper of the Records of Scotland) shall cease to have effect.

The Copyright Act, 1956 (4 & 5 Eliz. 2. c. 74)

As respects any reproduction made after the commencement of this Act, the reference in paragraph (a) of subsection (1) of section forty-two to records of the description there mentioned shall be taken as a reference to public records which are open to public inspection in pursuance of the provisions of this Act.

FOURTH SCHEDULE

Section 13.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Vict. c. 94.	The Public Record Office Act, 1838.	The whole Act.
5 Vict. c. 5.	The Court of Chancery Act, 1841.	Section seventeen.
40 & 41 Vict. c. 55.	The Public Record Office Act, 1877.	The whole Act.
57 & 58 Vict. c. 60.	The Merchant Shipping Act, 1894.	In section two hundred and fifty-six, subsection (2).
61 & 62 Vict. c. 12.	The Public Record Office Act, 1898.	The whole Act.
15 & 16 Geo. 5. c. 49.	The Supreme Court of Judicature (Consolidation) Act, 1925.	In section nineteen, paragraph (6). Sections one hundred and seventy-three and one hundred and ninety-nine.
1 Edw. 8 & 1 Geo. 6. c. 43.	The Public Records (Scotland) Act, 1937.	In section five, in subsection (1), the proviso.
9 & 10 Geo. 6. c. 59.	The Coal Industry Nationalisation Act, 1946.	Section six. Section fifty-one.
1 & 2 Eliz. 2. c. 47.	The Emergency Laws (Miscellaneous Provisions) Act, 1953.	In section thirteen, the words "and 9". In the First Schedule, paragraph 9.



Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Record Office Act, 1838	1 & 2 Vict. c. 94.
Court of Chancery Act, 1841	5 Vict. c. 5.
County Courts Act, 1846	9 & 10 Vict. c. 95.
Court of Probate Act, 1857	20 & 21 Vict. c. 77.
Matrimonial Causes Act, 1857	20 & 21 Vict. c. 85.
Oxford University Act, 1860	23 & 24 Vict. c. 91.
Public Record Office Act, 1877	40 & 41 Vict. c. 55.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Public Record Office Act, 1898	61 & 62 Vict. c. 12.
Forgery Act, 1913	3 & 4 Geo. 5. c. 27.
Land Registration Act, 1925	15 & 16 Geo. 5. c. 21.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Import Duties Act, 1932	22 & 23 Geo. 5. c. 8.
Public Records (Scotland) Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 43.
Ministry of Supply Act, 1939	2 & 3 Geo. 6. c. 38.
War Damage Act, 1943	6 & 7 Geo. 6. c. 21.
Reinstatement in Civil Employment Act, 1944	7 & 8 Geo. 6. c. 15.
Coal Industry Nationalisation Act, 1946	9 & 10 Geo. 6. c. 59.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
Cotton (Centralised Buying) Act, 1947	10 & 11 Geo. 6. c. 26.
Statistics of Trade Act, 1947	10 & 11 Geo. 6. c. 39.
Industrial Organisation and Development Act, 1947	10 & 11 Geo. 6. c. 40.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Cotton Spinning (Re-Equipment Subsidy) Act, 1948	11 & 12 Geo. 6. c. 31.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Monopolies and Restrictive Practices (Inquiry and Control) Act, 1948	11 & 12 Geo. 6. c. 66.
Legal Aid and Advice Act, 1949	12 & 13 Geo. 6. c. 51.
Legal Aid and Solicitors (Scotland) Act, 1949	12 & 13 Geo. 6. c. 63.
Emergency Laws (Miscellaneous Provisions) Act, 1953	1 & 2 Eliz. 2. c. 47.
Restrictive Trade Practices Act, 1956	4 & 5 Eliz. 2. c. 68.
Copyright Act, 1956	4 & 5 Eliz. 2. c. 74.
Cinematograph Films Act, 1957	5 & 6 Eliz. 2. c. 21.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 1s. 0d. net

PRINTED IN GREAT BRITAIN

(38110)